

Atul Narain v. S.D.O. Vidyut Vitran

Allahabad High Court · Division Bench · 21 June 2016 · WRIT - C No. - 29042 of 2016 · **Writ disposed of; petitioner relegated to civil suit or Annexure 4.2.**

HEADNOTE

Writ for a meter in the petitioner's own name in premises over which he had already filed a civil suit claiming a share, disposed of by relegating him to an application in that suit or to the Executive Engineer under Annexure 4.2 of the Electricity Supply Code, 2005.

FACTUAL SUMMARY

Atul Narain petitioned the Allahabad High Court for a direction to install an electricity meter in his own name in the premises in question. He had already filed a civil suit claiming a share in that property. The respondents were the Sub-Divisional Officer, Vidyut Vitran, and another. The Division Bench recorded the pending title claim and did not examine whether a connection or meter was due on the facts of occupation or ownership.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::Annexure 4.2

meter in own name — pending title suit

HOLDING

Where the petitioner has already filed a civil suit claiming a share in the property, a writ seeking installation of a meter for supply in his own name is disposed of without a merits direction; he may apply in the pending suit or approach the Executive Engineer under Annexure 4.2 of the Electricity Supply Code, 2005. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — ENTITLEMENT TO A METER FOR SUPPLY IN THE PETITIONER'S OWN NAME IN THE PREMISES

Left to an application in the pending civil suit or to the Executive Engineer under Annexure 4.2 ¶ 1